

Tenant Argument and Landlord Response Guide

This guide helps the landlord answer the most common challenge points without breaking alignment across the notice, service record, and evidence file.

Property: 10 Sample Road, Leeds, LS1 1AA

Argument and response table

1. Tenant argument: Rent increase is too high | Response: Keep the reply anchored to the comparable evidence and the proposed market position. | Evidence to check: justification report, adjusted range, challenge band (Moderate likelihood of challenge). | Document to refer to: Rent Increase Summary and Justification Report.
2. Tenant argument: Property condition is worse than comparables | Response: Deal with condition directly and explain any adjustment or why none was required on the saved evidence. | Evidence to check: property condition comparison sheet, photographs, inspection notes. | Document to refer to: Property Condition Comparison Sheet.
3. Tenant argument: Comparable properties are not similar | Response: Point to locality, bedroom count, and the nearest source-backed examples such as Flat 2, The Calls, Leeds LS1. | Evidence to check: comparable table, distance, source dates. | Document to refer to: Justification Report and Tribunal Argument Summary.
4. Tenant argument: Notice served incorrectly | Response: Keep the reply tied to the recorded method, service date, and the same Form 4A that appears in the file. | Evidence to check: proof of service record and service chronology. | Document to refer to: Proof of Service Record and Cover Letter.
5. Tenant argument: Start date is invalid | Response: Check the two-month notice rule, tenancy-period alignment, and 52/53-week timing before taking a fixed position. | Evidence to check: preview warnings and date calculations. | Document to refer to: Rent Increase Summary and Justification Report.
6. Tenant argument: Tenant cannot afford it | Response: Keep the reply respectful but focused on the tribunal test, which is open-market rent rather than affordability alone. | Evidence to check: open-market comparable evidence and any written proposal for a revised figure or later date. | Document to refer to: Cover Letter and Landlord Response Template.

Negotiation strategy

Stand firm where the comparable evidence is current, consistent, and clearly supports the proposed figure. Consider a small concession or later start date where the evidence is mixed, a condition point is fair, or a written agreement would avoid an unnecessary tribunal reference.

Record any settlement in writing and make sure any agreed variation does not conflict with the Form 4A position or service record already relied on.

If service is not valid or cannot be proved, the tribunal may reject or discount the notice file before considering market rent.